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| CASE #      | CASE NAME                     | HEARING NAME                                           |
|-------------|-------------------------------|--------------------------------------------------------|
| CVRI2505093 | WEIR VS TRICON<br>RESIDENTIAL | MOTION TO STRIKE COMPLAINT<br>ON 1ST AMENDED COMPLAINT |

**Tentative Ruling:**

**GRANTED WITH LEAVE.**

**PROOF OF SERVICE:** Proper

In October 2018, Plaintiff Jennifer Weir (“Jennifer”) entered a written lease with property owner, Defendant HPA JV Borrower 2019-1 ML LLC (“Defendant”), regarding 2238 Escondido Way in Perris (“property”). Defendant Tricon Residential (“Tricon”) was the property manager. The lease permitted Jennifer’s minor children, Plaintiffs Imani Reed (minor) and Princeton Reed (minor) to reside in the property. Plaintiffs allege the property plagued by persistent water intrusion and hazardous mold contamination which rendered the premises unfit for safe and habitable occupancy and causing them damage.

Plaintiffs filed this action on August 26, 2025. On March 18, 2026, Plaintiffs filed their operative First Amended Complaint (“FAC”) alleging six (6) causes of action: 1.) Negligence; 2.) Private Nuisance; 3.) Breach of Contract; 4.) Breach of Implied Warranty of Habitability; 5.) Breach of Implied Warranty of Peaceful and Quiet Enjoyment; and 6.) Constructive Eviction. On April 23, 2026, Plaintiffs dismissed Tricon from the action.

Defendant now moves to strike the allegations for punitive damages at paragraphs 59 and 141 and prayer at paragraph 5. (C.C.P., §§ 435-436.) Defendant argues Plaintiffs fail to plead facts showing oppression, fraud or malice by Defendant to support the claim. Defendant also argues that Plaintiffs have not adequately alleged punitive damages against a corporate entity. (Civ. Code, § 3294(b).)

Plaintiffs oppose and argue they have adequately alleged facts supporting their claim for punitive damages when the FAC is read as a whole. They also argue they have adequately alleged corporate liability, but request leave to amend if the Court determines more detail is needed.

In reply, Defendant re-argues the points made in the moving papers.

The court may, upon a motion made pursuant to C.C.P., § 435:

- (a) Strike out any irrelevant, false, or improper matter inserted in any pleading.
- (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.

(C.C.P., § 436.) Motions to strike can be used to attack the entire pleading, or any part thereof. (C.C.P., § 435; *Warren v. Atchison, T. & S.F. Ry. Co.* (1971) 19 Cal.App.3d 24, 40.)

As with demurrers, the grounds for a motion to strike must appear on the face of the pleading under attack, or from matters which the court may judicially notice. (C.C.P., § 437(a).) “[T]he court treats as true the material facts alleged in the complaint, as well as any facts which may be implied or inferred from those expressly alleged.” (*Washington Int’l Ins. Co. v. Sup. Ct.* (1998) 62 Cal.App.4th 981, 984, fn. 2.)

A motion to strike is also the proper vehicle to attack punitive damages claim where facts alleged may not rise to the level of fraud, malice or oppression. (*Truman v. Turning Point of Central Calif., Inc.* (2010) 191 Cal.App.4th 53, 63.) Generally, claims for punitive damage must be pleaded with particularity as to the facts constituting the alleged egregious conduct. (*G.D. Searle & Co. v. Sup. Ct.* (1975) 49 Cal.App.3d 22, 29.) However, the court may read the complaint so that conclusory allegations may be sufficient when read in context with the facts alleged as to the defendant’s wrongful conduct. (*Perkins v. Sup. Ct.* (1981) 117 Cal.App.3d 1, 6-7.)

To support a claim for punitive damages under Civil Code § 3294, a party must plead with facts supporting malice, oppression or fraud as identified in Civ. Code § 3294(c). Oppression means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights, while malice means conduct which is intended to cause injury or despicable conduct which is carried out with a willful and conscious disregard of the rights or safety of others.” (Civ. Code, § 3294(c).) Malice means conduct that is intended by the defendant to cause injury to plaintiff or despicable conduct which is carried out by the defendant with a willful and conscious disregard of the rights or safety of others. (*Id.*) As used in the statute, despicable conduct is conduct which is “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people.” (*American Airlines, Inc. v. Sheppard Mullin Richter & Hampton* (2002) 96 Cal.App.4th 1017, 1050.) In addition, “[w]ith respect to a corporate employer, the advance knowledge of conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (C.C.P., § 3294(b).)

Plaintiff generally seeks punitive damages in paragraph 59 in the “facts common to all causes of action” section and prayer at paragraph 5, and specifically in paragraph 141 as to the 6<sup>th</sup> cause of action for constructive eviction. A breach of the warranty of habitability may be sufficient to support punitive damages, especially where there is a constructive eviction. (*Rivers v. Sassoon* (1995) 39 Cal.App.4th 1045, 1046 [affirming general, special and punitive damages jury award for breach of the warranty of habitability, nuisance and other torts]; *Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 916-17 [failure to correct defective living conditions sufficient for punitive damages claim]; *Spinks v. Equity Residential Briarwood Apartments* (2009) 171 Cal.App.4th 1004, 1055.)

Here, read as a whole, the FAC alleges specific, particularized facts in numerous paragraphs that, if proven, would support the finding of malice or oppression. Specifically, pre-tenancy knowledge of harm (FAC ¶ 43); concealment and misrepresentation regarding the safety of the property (FAC ¶¶ 27, 56); prolonged inaction after repeated notice (FAC ¶¶ 23, 28, 30, 34); severity of the resulting hazard (FAC ¶ 24); and express allegations of conscious disregard (FAC ¶¶ 56, 58, 117, 141). Accordingly, the FAC states sufficient ultimate facts of malice and oppression to survive the motion to strike on this ground.

However, Defendant also argues that the FAC fails to identify an officer, director, or managing agent whose conduct gives rise to punitive liability. (Civ. Code, § 3294(b).) The FAC alleges only, in paragraph 8, that "[e]ach reference in this Complaint to any act or omission of a particular Defendant shall be deemed to mean that said Defendant and its officers, directors, agents, representatives, and employees did authorize such act while actively engaged in the management, direction, or control of that Defendant." (FAC, ¶ 2.) This boilerplate allegation does not identify any specific individual by name or describe their role with sufficient particularity to satisfy § 3294(b). The FAC does not allege that a particular officer, director, or managing agent had advance knowledge of the conditions, authorized or ratified the alleged inaction, or was personally guilty of the alleged malice or oppression. On this narrow ground, the motion to strike is well-taken. However, this deficiency is curable by amendment. Accordingly, the motion is **GRANTED** with leave to amend.